

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (**SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.**)

I. (a) PLAINTIFFS	DEFENDANTS
Wells Fargo Insurance Services USA, Inc.,	Glenn W. McQuate, Paul Prouty, and Mary Wong
	County of Residence of First Listed Defendant <u>Denver County, CO</u>
(b) County of Residence of First Listed Plaintiff <u>Mecklenburg County, NC</u> (EXCEPT IN U.S. PLAINTIFF CASES)	(IN U.S. PLAINTIFF CASES ONLY) NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.
(c) Attorneys (Firm Name, Address, and Telephone Number) Timothy M. Kratz, Jackson Lewis PC 950 17th Street, #2600, Denver CO 80202; 303-892-0404	Attorneys (If Known) Unknown

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)	III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)
☐ 1 U.S. Government Plaintiff	PTF DEF
☐ 3 Federal Question (U.S. Government Not a Party)	Citizen of This State ☐ 1 ☒ 1
☐ 2 U.S. Government Defendant	Citizen of Another State ☐ 2 ☐ 2
☒ 4 Diversity (Indicate Citizenship of Parties in Item III)	Incorporated or Principal Business In This State ☐ 4 ☐ 4
	Incorporated and Principal Business In Another State ☒ 5 ☐ 5
	Citizen or Subject of a Foreign Country ☐ 3 ☐ 3
	Foreign Nation ☐ 6 ☐ 6

IV. NATURE OF SUIT (Place an "X" in One Box Only)	
CONTRACT	TORTS
☐ 110 Insurance	☐ 310 Airplane
☐ 120 Marine	☐ 315 Airplane Product Liability
☐ 130 Miller Act	☐ 320 Assault, Libel & Slander
☐ 140 Negotiable Instrument	☐ 330 Federal Employers' Liability
☐ 150 Recovery of Overpayment & Enforcement of Judgment	☐ 340 Marine
☐ 151 Medicare Act	☐ 345 Marine Product Liability
☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans)	☐ 350 Motor Vehicle
☐ 153 Recovery of Overpayment of Veteran's Benefits	☐ 355 Motor Vehicle Product Liability
☒ 160 Stockholders' Suits	☐ 360 Other Personal Injury
☐ 190 Other Contract	☐ 362 Personal Injury - Med. Malpractice
☐ 195 Contract Product Liability	☐ 365 Personal Injury - Product Liability
☐ 196 Franchise	☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
☐ 368 Asbestos Personal Injury Product Liability	
REAL PROPERTY	PRISONER PETITIONS
☐ 210 Land Condemnation	Habeas Corpus:
☐ 220 Foreclosure	☐ 463 Alien Detainee
☐ 230 Rent Lease & Ejectment	☐ 510 Motions to Vacate Sentence
☐ 240 Torts to Land	☐ 530 General
☐ 245 Tort Product Liability	☐ 535 Death Penalty
☐ 290 All Other Real Property	Other:
	☐ 440 Other Civil Rights
	☐ 441 Voting
	☐ 442 Employment
	☐ 443 Housing/ Accommodations
	☐ 445 Amer. w/Disabilities Employment
	☐ 446 Amer. w/Disabilities Other
	☐ 448 Education
	☐ 540 Mandamus & Other
	☐ 550 Civil Rights
	☐ 555 Prison Condition
	☐ 560 Civil Detainee - Conditions of Confinement

V. ORIGIN (Place an "X" in One Box Only)
☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

Cite the U.S. Civil Statute under which you are filing (**Do not cite jurisdictional statutes unless diversity**):
28 U.S.C. § 1332

VI. CAUSE OF ACTION
Brief description of cause: ☐ AP Docket
Common law and statutory claims including breach of contract and misappropriation of trade secrets.

VII. REQUESTED IN COMPLAINT:
☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23
DEMAND \$ Preliminary Injunction
CHECK YES only if demanded in complaint: JURY DEMAND: ☐ Yes ☒ No

DATE	SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

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I. (a) Plaintiffs -Defendants. Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) County of Residence. For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land filing, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) Attorneys. Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment noting, noting in this section "(see attachment)".

II. Jurisdiction . The basis of jurisdiction is set forth under Rule 8(a), F.R.C.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.

United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.

United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box

Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and 1 or 2 should be marked.

Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below; federal question actions take precedence over diversity cases.)

III. Residence (citizenship) of Principal Parties. This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. Nature of Suit . Place an "X" in the appropriate box. If the nature of suit cannot be determined, be sure the cause of action, in Section VI below, is sufficient to enable the deputy clerk or the statistical clerks in the Administrative Office to determine the nature of suit. If the cause fits more than one nature of suit, select the most definitive.

V. Origin . Place an "X" in one of the seven boxes.

Original Proceedings. (1) Cases which originate in the United States district courts.

Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441. When petition for removal is granted, check this box.

Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.

Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.

Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.

Multidistrict Litigation. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407. When this box is checked, do not check (5) above.

Appeal to District Judge from Magistrate Judgment. (7) Check this box for an appeal from a magistrate judge's decision.

VI. Cause of Action . Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity .**

Example:

U.S. Civil Statute: 47 USC 553

Brief Description:

Unauthorized reception of cable service

Or:

"AP Docket"

VII. Requested in Complaint . Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.

Demand. In this space enter the dollar amount (in thousands of dollars) being demanded or indicate other demand such as a preliminary injunction.

Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

Date and Attorney Signature . Date and sign the civil cover sheet.